

J. Suspected partiality

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1. General principles

1.1. Exclusion and objection

Pursuant to Art. 24(1) EPC, members of the boards of appeal or of the Enlarged Board of Appeal may not take part in a case in which they have any personal interest, or if they have previously been involved as representatives of one of the parties, or if they participated in the decision under appeal. If a member of a board or of the Enlarged Board of Appeal considers that he should not take part in any appeal, he shall inform the board accordingly (Art. 24(2) EPC). Art. 24(3) EPC additionally provides that members of a board of appeal may be objected to by any party for one of the reasons mentioned in Art. 24(1) EPC, or if suspected of partiality. The decision as to the action to be taken in the cases specified in paragraphs 2 and 3 of Art. 24 EPC shall be taken without the participation of the member concerned. For the purposes of taking this decision, the member objected to is replaced (Art. 24(4) EPC).

If the board has knowledge of a possible reason for exclusion or objection which does not originate from a member himself or from any party to the proceedings, according to Art. 3(3) RPBA 2020 and Art. 4(3) RPEBA there shall be no further proceedings in the case before a decision on the exclusion or objection is taken. Art. 3(3) RPBA 2020 amends Art. 3(3) RPBA 2007 for reasons of clarity/consistency to "exclusion or objection"; Art. 4(3) RPEBA still has the wording of Art. 3(3) RPBA 2007, which does not include the word "objection". For the purposes of taking this decision, the procedure of Art. 24(4) EPC shall be applied.

While there are no provisions comparable to Art. 24 EPC that are applicable to members of the departments of first instance, the case law of the boards of appeal has determined that the basic requirement of impartiality applies also to them (see G 5/91, OJ 1992, 617; see also in this chapter III.J.1.6 below).

In G 2/08 of 15 June 2009 the Enlarged Board noted that under "exclusion and objection" (Art. 24 EPC) the legislator distinguishes between, on the one hand, an irrefutable presumption of law consisting in those compelling **grounds for exclusion** (Art. 24(1) EPC; see in this chapter III.J.5.1.) that must apply ex officio, and may therefore be raised by anyone, i.e. the parties, the board or a third person, without their having to justify any personal interest as of right, and, on the other hand, the **grounds for objection** (Art. 24(3) EPC; see in this chapter III.J.5.3.) that may be raised by any party to the proceedings if it suspects partiality of a member of a board of appeal or of the Enlarged

Board of Appeal, since said party enjoys a personal and legitimate interest in the proceedings and is entitled to due process of law in respect of said interest. In such a case the burden of proof lies with the party who raises the objection, since board members, including those of the Enlarged Board of Appeal, are a priori **presumed to be unbiased** (see in this chapter III.J.1.5.). This distinction is also reflected in Art. 112a(2)(a) EPC, which provides as a ground of petition for review that a member of a board of appeal took part in the decision in breach of Art. 24(1) EPC or despite having been excluded pursuant to a decision under Art. 24(4) EPC. In other words, whereas the grounds under Art. 24(1) EPC are considered to be peremptory due to the violation of the legal principle that nobody should be a judge in his own cause, the ground which could have justified an objection for suspicion of partiality is not directly envisaged as constituting a priori (i.e. unless proven and decided by the board; see also R 20/09) a cause of review (Art. 24(3) EPC). See also G 3/08 of 16 October 2009.

1.2. Rationale and importance

According to the Enlarged Board in G 1/05 of 7 December 2006 (OJ 2007, 362), the right to object to a judge for reasons of suspicion of partiality is meant to prevent judges from being influenced in their decision-making – be it deliberately or inadvertently – by extraneous considerations, prejudices and predilections, i.e. by considerations other than the arguments they consider factually and legally relevant for the case under consideration.

In G 5/91 (OJ 1992, 617) and G 1/05 of 7 December 2006 the Enlarged Board underlined the importance of a very strict observance of the requirement of impartiality in proceedings before it and the other boards of appeal in view of their judicial functions at final instance within the European patent granting system.

1.3. The European Convention on Human Rights

In G 1/05 of 7 December 2006 (OJ 2007, 362) the Enlarged Board stated that the principle of equal treatment and the right of parties to a fair trial enshrined in Art. 6(1) of the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR) obliged the boards of appeal to decide the individual cases pending before them according to uniformly applied criteria and not in an arbitrary manner. In interlocutory decision G 2/08 of 15 June 2009 the Enlarged Board also stressed that it and the other boards of appeal act as judicial bodies and apply general principles of procedural law.

In R 19/12 of 25 April 2014 the Enlarged Board observed that Art. 6 ECHR had been recognised in G 1/05 and G 2/08 as the binding standard for proceedings before the boards of appeal because it relied on principles of law common to all the European Patent Organisation's member states and applied to all its departments (see also R 2/14 of 17 February 2015; D 11/91, OJ 1995, 721). This justified applying both national case law and that of the European Court of Human Rights as a supplementary means of interpretation for the EPC.

1.4. Parties' right to have their case decided by the judge designated by law

Before the beginning of each working year, in accordance with R. 12b(4) EPC and Art. 1(1) RPBA 2020, a business distribution scheme is drawn up for the distribution among the boards of appeal of all appeals that may be filed during the year, designating the members who may serve on each board and their respective alternates. The scheme may be amended during the working year. A business distribution scheme is likewise determined for the Enlarged Board of Appeal before the beginning of the working year (R. 13 EPC, Art. 2 RPEBA). This too may be amended during the working year.

In G 1/05 of 7 December 2006 (OJ 2007, 362) the Enlarged Board of Appeal stated that it was very important that board members discharged their duty to sit in the cases allocated to them. Board members cannot withdraw from the proceedings at will, i.e. for reasons which have nothing to do with the purpose of the provisions on exclusion and objection (see in this chapter III.J.2.1.). On the other hand it should also be avoided that a board member has to sit in a case where he or she is convinced or fears that he or she might not be able to be impartial.

In G 2/08 of 15 June 2009 the Enlarged Board also pointed out that its members have a duty to sit on the cases allocated to them (see also G 3/08 of 16 October 2009) according to their jurisdiction both "*ratione legis*" and "*ratione materiae*". That is to say, parties to judicial proceedings have a right to have their case considered and decided by the judge designated or appointed by law. This essential principle is even enshrined at a constitutional level in some EPC contracting states, e.g. Germany, Austria and Switzerland (see G 1/05 of 7 December 2006, OJ 2007, 362; T 954/98 of 9 December 1999, J 15/04, R 2/14 of 17 February 2015, R 15/11). On the other hand, Art. 6(1) of the European Convention of Human Rights (ECHR) requires inter alia that "in the determination of his civil rights and obligations ... everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law". These principles are not incompatible and have to be construed in such a way that they are not mutually exclusive.

In R 19/12 of 25 April 2014 the Enlarged Board likewise stressed that interpretation of the rules on objections of suspected partiality had to find a balance between two principles: no one may escape the jurisdiction of the judge appointed by law, but on the other hand everyone has a fundamental right to a fair trial before an independent and impartial tribunal (Art. 6(1) ECHR, Art. 47(2) of the Charter of Fundamental Rights of the European Union).

In R 15/11 the board, referring to G 1/05, held that not only could board members not withdraw from the proceedings at will, but also that the provisions on business distribution must apply for a case re-opened before the board, unless there was a compelling reason for proceeding otherwise. The Enlarged Board stated it was therefore appropriate, when exercising the power of discretion conveyed by R. 108(3), second sentence, EPC, to consider the criteria and standards that have been developed for the replacement of members of the board of appeal following an objection of suspected partiality pursuant to Art. 24(3) and (4) EPC.

In T.281/03 of 30 March 2006 the board held that the correctness of the composition had to be decided on the basis of objective criteria, i.e. on the basis of the Rules of Procedure of the Boards of Appeal and the Business Distribution Scheme. There was no subjective element which would justify an analogous application of Art. 24(4) EPC, nor did it in its substitute composition see any gap in the law which might require an analogous application of Art. 24(4) EPC. On the contrary, if the composition of a board had to be checked by a second composition, the operation of a board could be paralysed by a sequence of mere objections to its composition.

In T.355/13 the board found inadmissible the appellant's mere allegation that as a result of changes to its composition, the board had formed a special tribunal ("Spezialtribunal") to the appellant's disadvantage, and that the "real grounds" for the changes to the composition had not been communicated by the board. The board had explained in a communication to the parties that the changes to the board's composition were due to changes to the business distribution scheme, in particular it was pointed out that the former technically qualified member had been transferred to another board and the former legally qualified member was no longer a member of the boards of appeal. The appellant had nevertheless pursued its objection without producing any evidential basis supporting the allegation.

1.5. "Subjective" and "objective" test, presumption of impartiality

In T.190/03 (OJ 2006, 502; see also R.8/13 of 20 March 2015; R.19/12 of 25 April 2014; T.283/03; T.572/03 of 18 March 2005; T.1193/02; T.1021/01 of 18 March 2005; T.281/03 of 18 March 2005 and T.281/03 of 30 March 2006) the board held that partiality had to be determined on the basis of the following **two tests**: firstly, a **"subjective" test** requiring proof of actual partiality of the member concerned; and secondly, an **"objective" test** according to which the deciding board judged whether the circumstances of the case gave rise to an objectively justified fear of partiality. The board stated that actual partiality was an internal characteristic of the member himself and its presence went against the principle of a fair trial. However, suspicion and appearances were not enough to show actual partiality. It was a fundamental duty of a board member acting in a judicial capacity to take decisions objectively and not be swayed by personal interest or other peoples' comments or actions. Thus, the board held that a board member's personal impartiality was to be presumed until there was proof to the contrary (see also G.2/08 of 15 June 2009 and R.19/12 of 25 April 2014).

On the other hand, the board stated that the appearance of partiality involved external aspects and reflected, regardless of whether the member was actually biased or not, the confidence that the board inspired in the public; "Justice must not only be done; it must be seen to be done" (see also T.900/02, T.2291/08 and R.8/13 of 20 March 2015). The board held that this aspect of partiality did not need to be proved in the same way as actual partiality, but rather it had to be established whether the circumstances gave rise to an objectively justified fear of partiality (objective element). This essentially corresponded to the "objective" and "reasonable" grounds identified in the case law of the EPO. The board stated that the above was in line with generally acknowledged procedural principles in the contracting states, e.g. the jurisprudence of the European Court of Human Rights (ECtHR).